GE INDIA INDUSTRIAL PVT LIMITED

APPROVED

PURCHASE ORDER

Mark all packages, packing lists, correspondence, and invoices, with the GE Item Identifier and Order Number. A packing list must accompany each shipment with requestor name included. Invoices are not payable before items are received.

HEADER

PO Type	STANDARD	Date	-NOV-16
PO Number	1015385	Revision Date	-NOV-16
Revision	1	Release No.	
Job Number			

SUPPLIER

NIHVA TECHNOLOGIES PRIVATE LIMITED
8 1 COROMANT HSG SOCIETY SECTOR 27 PRADHIKARAN NIGDI
PUNE,MAHARASHTRA 411044
India

Phone 8551094333
Fax
Email r.kulkarni@nihva.com
PAN NO AAECN0437H

BUYER

Name Email

Requestor/Deliver To

Name P10, LOCOM Email

This purchase order is subject to the attached general terms and conditions of purchase order of GE India to which the supplier undertakes to comply with. This order expressly limits acceptance to the terms stated on the attached Purchased Order supplement. Any additions or different terms whether or not materially different set forth in any communication from the seller are objected to and hereby rejected. This is a computer generated form and does not require any signature. The terms of this PO shall be deemed to be binding on the parties only after its acceptance by the receiving party by raising a signed invoice for the same.

Note For Local Supplies:

VAT TIN GE India Industrial Pvt LTD.(GE MMF):	27920284040V
Sales Tax CST Reg No.	27920284040C
PAN NO	AAACG4901D
Excise Registration No.	AAACG4901DEM056
Excise Range	Range IV (Chakan IX)
Excise Division	Division IV(Chakan II)

Note For Imported Supplies:

This PO does not contain goods from the Negative list as mentioned under the Foreign Trade Policy of India.

Additional Note To Supplier

Refer Quotation No. SQT/16-17/0090R2 Date:

SHIP TO

GE India Industrial Pvt. Ltd.,
Plot A78/1, MIDC Chakan Industrial Area,
Phase 2, Village Vasuli, Pune 410501 Maharashtra INDIA

BILL TO

GE India Industrial Pvt. Ltd.,
Plot A78/1, MIDC Chakan Industrial Area,
Phase 2, Village Vasuli, Pune 410501 Maharashtra INDIA

TERMS

Currency INR
Payment Terms
Freight Terms
Carrier
Contact Person
Telephone
Email

Line Num	Item Code	Item Rev	Item Description	Need By Date	Job	Quanti ty	UOM	Price/ Unit	Total Amount
1	IND PE FACILITIES & IT EQUIPMENT		Albany Make Rapid Roll Up Door RR392 (100% Imported with all components – made in Germany) Size:(W) 5000mm x (H) 6000mm ( )	16-NOV-2016		1	EACH	00	

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2	IND PE FACILITIES & IT EQUIPMENT		Albany Make Rapid Roll Up Door RR392 (100% Imported with all components – made in Germany) Size:(W) 6000 x (H) 5800mm ( )	16-NOV-2016		1	EACH	00	.0
3	IND PE FACILITIES & IT EQUIPMENT		Albany Make Rapid Roll Up Door RR392 (100% Imported with all components – made in Germany) Size:(W) 6000mm x (H) 5200mm ( )	16-NOV-2016		1	EACH	00	
4	IND PE FACILITIES & IT EQUIPMENT		Albany Make Rapid Roll Up Door RR392 (100% Imported with all components – made in Germany) Size:(W) 6000mm x (H) 6000mm ( )	16-NOV-2016		1	EACH	00	
5	IND PE FACILITIES & IT EQUIPMENT		Albany Make Rapid Roll Up Door RR300 S (100% Imported with all components – made in Germany) Size:(W) 3000mm x (H) 3000mm ( )	16-NOV-2016		1	EACH	00	
6	IND PE FACILITIES & IT EQUIPMENT		Installation charges for Rapid Roll up door ( )	16-NOV-2016		6	EACH	0	
7	IND PE FACILITIES & IT EQUIPMENT		MS Structure -Rapid Roll Up Door ( )	16-NOV-2016		6	EACH	0	
8	IND PE FACILITIES & IT EQUIPMENT		Motorized Rolling Shutter GI Slat:1 mm Thk, Curved Type Profile with heavy duty Shaft, Guide - 75mm, Hood Cover - 0.9 mm GI,Motor –In Direct Drive, Manual Chain, Size:(W) 6000mm x (H) 6000mm ( )	16-NOV-2016		1	EACH	00	
9	IND PE FACILITIES & IT EQUIPMENT		Installation charges for above Shutter of Size:(W) 6000mm x (H) 6000mm ( )	16-NOV-2016		1	EACH	0	
10	IND PE FACILITIES & IT EQUIPMENT		Removing, Reworking and Relocating of Existing Rolling Shutter Size:(W) 7000mm x (H) 8000mm ( )	16-NOV-2016		1	EACH	0	
11	IND PE FACILITIES & IT EQUIPMENT		Albany Make Rapid Roll Up Door RR300+ Alu- Size:(W) 5000mm x (H) 5000mm ( )	16-NOV-2016		1	EACH	00	
							Total		.0

Service Tax @ 14%	
Service Tax @14%	
VAT @ 13.5%	.0
Service Tax @.5%	.0
Service Tax SB @ 0.5%	
Krishi Kalyan Cess@.5%	.0
Total	

Grand Total	4,055,495.00
Total PO Value (In Words)	R)

(For Domestic India Suppliers only)

Note to Supplier:

Every material/delivery should have valid invoice with it.

Invoices for service activities in Chakan should be sent to the below address through courier.

To,
GRN/Receiving team
GE India Industrial Pvt. Ltd
No. A–78/1, Chakan Industrial Estate,
Maharashtra Industrial Development Corporation (MIDC), Khed Taluk, Vasuli village
Pune-410501

Note: Please do not send the invoice to the sourcing team or the user/requestor.

Mandatory expectations from Supplier regarding Invoices

Every Invoice and Delivery Note shall contain at least, but not limited to, the following information.
*Purchase Order Number
*Purchase Order Line
*Item Part Number (If any)
*PO Revision Number (If any)
*Name & address of Consignee
*VAT, CST, Excise details of Consigner & Consignee (Taxes should be as per PO)
*Original copy of Invoice
*Original receipts of Fees paid in case of reimbursement

Additional requirement In case of Services

PAN no.
Service Tax Category
Service Tax Bifurcation (12%, 2% & 1%)

Documents in case of Transportation in supplier scope

Driver license, Vehicle RC Book, Vehicle Insurance copy & Vehicle PUC.
Availability of these documents in originals with driver is must, failing to which shall result in vehicle being sent back without receiving material

Disclaimer

The above details are a mandatory requirement for processing invoices and settlement. An invoice without the correct and adequate information cannot be processed and might be returned to the vendor. Missing information on the invoice might result in payment delays.
By accepting the order, the vendor acknowledges and accepts these terms

ACCEPTANCE AND TERMS AND CONDITIONS: These General Terms and Conditions of Purchase shall govern the purchase of the goods and/or services specified on the face of the preceding Purchase Order. The term "Purchase Order" as used herein shall collectively refer to the Purchase Order and these General Terms and Conditions of Purchase. This Purchase Order is considered accepted by Seller upon acknowledgement or acceptance of the same by means of electronic communication or signature of authorized representative of the Seller on the Purchase Order or if delivery of the goods/products or performance of the services requested by this Purchase Order are made by Seller. By acceptance of this Purchase Order, Seller agrees to be bound by, and to comply with all the terms and conditions of this Purchase Order. ANY ACCEPTANCE OF THIS PURCHASE ORDER IS LIMITED TO ACCEPTANCE OF THE EXPRESS TERMS OF THE OFFER CONTAINED ON THE FRONT AND BACK OF THIS PURCHASE ORDER AND ANY ATTEMPTED ACKNOWLEDGMENT OF THIS PURCHASE ORDER OR OTHER DOCUMENT CONTAINING TERMS AND CONDITIONS INCONSISTENT WITH OR IN ADDITION TO THE TERMS AND CONDITIONS OF THIS PURCHASE ORDER ARE HEREBY OBJECTED TO AND REJECTED BY PURCHASER AND ARE NOT BINDING UPON PURCHASER UNLESS SPECIFICALLY ACCEPTED BYPURCHASER IN WRITING; NOR SHALL SUCH ACKNOWLEDGEMENT CONTAINING ADDITIONAL TERMS AND CONDITIONS OPERATE AS A REJECTION OF THESE TERMS AND CONDITIONS OF PURCHASE. In this Purchase Order, "Seller" or "Supplier" or "Service Provider "means the supplier of the goods or services ordered, and "Purchaser" or "Buyer "means GE International Operations Co Inc to whom the goods or services are being supplied.

PAYMENT TERMS: Seller shall invoice Purchaser no later than ninety (90) days after completion of the services. Charges shall be payable within one hundred twenty (120) days from the date a correct invoice is received or approved by Purchaser. Purchaser may choose to implement payment discounts based on an accelerated basis, which then the net payable amount due will be 3.5% 15 (or an equivalent discount based on the actual time to pay) net one hundred twenty (120) days from the date a correct invoice is received or approved by Purchaser. By example, if Purchaser makes payment to Seller on the 15th day after the date a correct invoice is received or approved, Purchaser will apply a 3.5% discount to such payment. In order to be deemed acceptable, each invoice shall include, at minimum: Seller; s name and address, Seller's registration numbers under applicable laws, Purchaser's name and address, Purchaser's purchase order number, a description of services, the total amount billed, and any other information expressly agreed to by the parties in writing. Invoices shall be submitted in a form that fully complies with all local, state and country laws (e.g., Sales and Use Tax, Value Added Tax (VAT), Goods and Services Tax (GST) or similar tax laws, as applicable). Purchaser shall be entitled at all times to set-off any amount owing at any time from Seller to Purchaser or any of its affiliated companies against any amount payable at any time by Purchaser in connection with this Purchase Order. Purchaser may, at its option, remit payments to Seller using a credit card, or by electronic procurement credit card. Should Purchaser choose to remit payments with either method, Seller agrees to provide Purchaser with additional billing details as may be required. Further, GE may, at its option, remit payments by electronic funds transfer ("EFT") via Seller's bank or by wire transfer via Seller's bank. The foregoing payment options are subject to Seller's adherence to Purchaser's policies and procedures regarding such payment methods. When any applicable law, makes any payment prohibited or improper or requires the payment of a reduced fee, the portion of the Fee so affected shall not be paid or if paid shall be refunded to Purchaser.
The fee does not include applicable transaction taxes. If under the applicable tax laws, Seller is liable to charge any federal, state, county, local or VAT or GST and based on the Services provided or goods/products supplied, Seller shall ensure that it is invoiced to Purchaser in accordance with applicable law and rules so as to allow Purchaser to reclaim such value-added and/or similar tax from the appropriate government authority or claim a credit for the same in case the Purchaser is so eligible. Nothing in this Agreement, however, shall require Purchaser to pay any payroll, franchise, corporate, partnership, succession, transfer, income, excise, profits or income tax of Seller. Neither party is responsible for taxes on the other party's income or the income of the other party's personnel or subcontractors. If Purchaser is required by government regulation to withhold taxes for which Seller is responsible, Purchaser shall deduct such withholding tax from payment to Seller and provide to Seller a valid tax receipt in Seller's name. If Seller is exempt from such withholding taxes as a result of a tax treaty or other regime, Seller shall provide to Purchaser a valid tax treaty residency certificate or other tax exemption certificate at a minimum of thirty (30) days prior to payment being due. Should either party realize that any tax included or omitted as a result of the transactions hereunder was made in error, the Parties shall cooperate to resolve such overpayment or underpayment and to further assist in refunding or charging of any mistaken payments. The Parties may agree on specific tax terms for a Purchase Order, and to the extent such terms are in conflict with the terms in this General Terms & Conditions, the specific terms will override these General Terms & Conditions.

Note: If the Seller/Supplier/Service Provider is a micro, small or medium enterprise within the meaning of the Micro, Small and Medium Enterprises Development Act, 2006 ("MSMED Act"), it shall promptly furnish a declaration of the same to the Purchaser along with such documentary evidence (including registration, memorandum etc. under the MSMED Act). For such categories of eligible Seller/ Supplier/Service Provider, payment terms shall be in accordance with the provisions of the MSMED Act. If there is any change in the status of the Seller/Supplier/Service Provider under the provisions of the MSMED Act, the same shall be promptly disclosed in writing to the Purchaser and the Purchaser reserves the right to effect a modification in payment terms accordingly.

TERMINATION: Purchaser may terminate all or any part of this Purchase Order at any time by written notice to Seller. Upon termination, Purchaser and Seller shall negotiate reasonable termination charges that will be identified by Seller within thirty (30) days of termination.

CHANGES: The Purchaser may at any time, in writing, make any changes to the services of this Purchase Order. If any such change causes an increase or decrease in the cost of, or the time required for the performance of any work pursuant to this Purchase Order, whether changed or not changed, an equitable adjustment shall be made in the contract price or delivery schedule, or both. Any claim by the Seller for adjustment under this clause must be asserted within thirty (30) days from the date of receipt by the Seller of the notification of change; provided, however, that the Purchaser, at its option, may receive and act upon any such claim asserted at any time prior to final payment under this Purchase Order. No extra charges of any kind will be allowed, except as agreed to in writing by the Purchaser.

BOOKS AND RECORDS: Supplier shall maintain complete and accurate books and records, supporting data and other evidence related to the provision of services hereunder in accordance with generally accepted accounting principles. Supplier agrees to maintain such books and records for seven (8 years from date of creation or receipt, or for such longer period as may be required by Buyer. Buyer, its employees, agents and representatives, shall have the right at any time during normal business hours, and upon at least seventy-two (72) hours' notice, to inspect and audit such books and records which may involve performance under or transactions related to any of the services or goods, or which will permit an adequate evaluation of the costs and fee data related thereto, or Supplier's compliance with any of its warranties or obligations under this Purchase Order. Supplier shall cooperate fully with Buyer or its authorized representatives or nominees in connection with audit functions or any inspections.

WARANTIES: Seller represents, warrants, certifies and covenants: (1) that its services hereunder will be performed by qualified individuals in a professional and workmanlike manner conforming to the highest industry standards and practices, and in strict accordance with all applicable laws, regulations, codes and standards of government agencies or authorities having jurisdiction, including all applicable central, state and local environmental, health and safety laws and regulations; (2) that all deliverables, goods and/or services, or any results thereof, will conform to any required specifications as described in the Purchase Order; (3) that unless otherwise agreed to by the parties in writing, all development by Seller on behalf of Purchaser shall be in compliance with any development guidelines and best practices and in conformance with release compatibility considerations for other Seller applications, whether commercially developed, or developed specifically as a work made for hire on behalf of Purchaser. If any goods, services, deliverables or results provided by Seller do not conform to this Purchase Order, Seller agrees to re-perform the services or replace the goods and reimburse Purchaser for losses, injuries, remedial costs and other direct damages resulting therefrom. This warranty shall also apply to any re-performed services or replaced goods.

COMPLIANCE WITH LAWS: Seller represents, warrants, certifies and covenants that: (1) it shall perform the services and activities pursuant to this Purchase Order in compliance with any applicable provisions of any central, state, or local law ordinance and all lawful orders, rules, and regulations issued and in force in the territory of the Republic of India, and Seller shall comply with any provisions, representations or agreements, or contractual clauses required thereby to be included or incorporated by reference or operation of law in this Purchase Order; (2) it shall take appropriate actions to provide a safe and healthy workplace to its employees or persons involved in the production of goods or provision of services under this Purchase Order, and to protect local environmental quality; (3) that no goods or services supplied under this Purchase Order have been or will be produced utilizing forced, indentured or convict labor or utilizing the labor of persons in violation of the applicable minimum working age law, or in violation of minimum wage, hour of service, or applicable overtime laws; and (4) that it has established an effective program to ensure any suppliers it utilizes to provide any goods or services that will be incorporated into products supplied under this Purchase Order will be in conformance with this section of this Purchase Order. (5) it shall ensure that all is compliant with all applicable laws in respect to its employees and contractors; conditions of service, compensation and benefits including but not limited to minimum wages, leave, provident fund, superannuation, gratuity, ESI, and workmen's compensation. Further, in accepting this Purchase Order, Seller represents that the goods or services to be furnished hereunder were or will be produced in compliance with the requirements of the applicable labour and employment laws in India in force in India, as amended. In the event Purchaser determines any of Seller's representations, warranties, certifications or covenants to be untrue, Purchaser shall have the right to immediately terminate this Purchase Order without further compensation to the Seller. In addition, Seller shall compensate Purchaser for any damages suffered by Purchaser as a result of Seller's untrue representations, warranties, or certifications or breach of covenants. Purchaser, by written notice, may terminate this Purchase Order, in whole or in part, at any time when it is in Purchaser's interest to do so. After termination, Seller shall turn over to Purchaser all completed work and work in process, including all designs, drawings, specifications, and other documentation and material required or produced in connection with such work; submit a final termination settlement proposal in the form and in the manner prescribed by Purchaser, and Purchaser shall reimburse Seller for the cost of all work performed under the Purchase Order prior to the date of receipt of the notice of termination, including a pro-rata portion of Seller's profit, less any costs Purchaser incurred as a result of the termination, or due to Seller's breach of any of its representations, warranties, certifications or covenants in this Purchase Order. From time to time, at Purchaser's request, Seller shall provide certificates to Purchaser relating to any applicable legal requirements or to update this section of this Purchase Order, in each case in a form and substance satisfactory to Purchaser. Further, Seller shall permit Purchaser or its representatives to have reasonable access to the site's where the work under this Purchase Order is performed in order to assess work quality, conformance with Purchaser's specification, and conformance with Seller's representations

COMPLIANCE WITH GE POLICIES & APPLICABLE LAW: Seller/Service Provider agrees to abide by all Purchaser's policies including but not limited to GE's Integrity Policies as contained in GE Spirit & Letter, to the extent applicable to the performance of its obligations under this Agreement during the Term. In the event any Supplier personnel will be performing any of the Services on Company's premises, Seller/Service Provider agrees that it will abide by Company's then current policies, which at a minimum include: Safety & Security Policies; Drug Use Policies; Background Checking; Security Sensitive Positions; GE's Integrity Policy: "Spirit & Letter"; GE Information Security Procedure and Network Security Guidelines as well as applicable legal requirements including but not limited to the Contract Labour (Regulation & Abolition) Act, 1970, provident fund and ESI. PRIOR TO SELLER/SERVICE PROVIDER DEPLOYING ANY OF ITS PERSONNEL ON COMPANY PREMISES TO PERFORM SERVICES, SELLER/SERVICE PROVIDER MAY REQUEST COPIES OF SUCH POLICIES FROM COMPANY, WHICH PURCHASER/COMPANY WILL PROMPTLY PROVIDE.

OWNERSHIP RIGHTS: In consideration of the payments to be made to Seller as set forth on the Purchase Order, Supplier hereby agrees and represents: (1) that the goods, services and deliverables under this Purchase Order and/or any contract document placed pursuant hereto are and shall be the exclusive property of Purchaser; (2) That it will communicate in writing and assign to Purchaser promptly and fully all inventions, innovations, computer programs (including source and object code and documentation), know-how and techniques (whether patentable or not or copyrightable or not and whether made solely by it or jointly with others) which are conceived or developed directly or indirectly from any services performed pursuant to this Purchase Order and statement of work placed pursuant hereto; (3) That such inventions, innovations, computer programs, know-how and techniques, whether documented or not, shall be and remain the sole and exclusive property of Purchaser or its nominees without regard to any termination of this Purchase Order; and that any such materials which are copyrightable shall be deemed to be produced by the Seller as works for hire, with Purchaser as the hiring party; provided, however, that any techniques, technology or tools independently developed by Seller and not developed for or paid for by Purchaser shall not be the intellectual property of Purchaser. No legends or author names may appear on or be used in connection with such inventions, innovations, computer programs, know-how and techniques of Purchaser unless prior written consent is obtained from Purchaser; (4) That it will unconditionally cooperate with and assist Purchaser and its nominees in every proper way during and subsequent to the term of this Purchase Order to perfect the Purchaser's (or its nominee's) rights and title to all such deliverables and to all such inventions, innovations, computer programs, know-how and techniques by executing or causing to be executed such instrument of assignment or other documentation as Purchaser may reasonably require, and to obtain and/or secure and to maintain for Purchaser's benefit, all patents, copyrights, and/or trade secret protection for such inventions, innovations, computer programs, know-how and techniques, in any and all countries of the world; (5) For avoidance of doubt, Purchaser is the exclusive owner of, and Seller is obligated to assign to Purchaser and to assist Purchaser in perfecting, all rights, titles and interests of Purchaser in and to the deliverables under this Purchase Order or any statement of work(s) placed pursuant hereto; and (6) That it will make and obtain adequate and current written records of and otherwise document or cause to be documented all such inventions, innovations, programs, know-how and techniques in the form of notes, sketches, drawings, flow charts, or reports relating thereto, which records shall be owned by Purchaser at all times and made available to Purchaser upon request.

CONFIDENTIAL OR PROPRIETARY INFORMATION: Any information which the Seller shall have disclosed or may hereafter disclose to the Purchaser, in connection with providing the goods, services or deliverables covered by this Purchase Order shall not, unless otherwise specifically agreed to in writing by the Purchaser, be deemed to be confidential or proprietary information. Seller shall keep confidential all information provided by Purchaser or by any customer of Purchaser or derived from drawings, specifications and other data furnished in connection with the goods and services, and shall not divulge, export, or use, directly or indirectly, such information for its own benefit or for the benefit of any other person without obtaining Purchaser's prior written consent. Except as required for the efficient performance of this Purchase Order, Seller shall not make copies or permit copies to be made of such drawings, specifications, or other data without the prior written consent of Purchaser. Upon completion or termination of this Purchase Order, Seller shall promptly return to Purchaser all materials and any copies thereof, except as may be legally required for record retention purposes. If Seller's services involve receipt or handling of customer information about Purchasers customers, Seller shall maintain in strict confidence and shall not use any non-public personal information relating to customers of Purchaser received from Purchaser and its affiliates (GE Parties) or obtained as a result of services performed by any GE Party (Customer Information) for any purpose, except as necessary in the ordinary course of business to perform the services specified under its agreement or business arrangement with the applicable GE Party(ies). Additionally, Seller will not disclose any Customer Information to any third party, except to its authorized subcontractors performing services hereunder and with respect to which it has obtained the relevant GE Party prior written consent. Seller will implement appropriate administrative, technical, and physical safeguards and other appropriate measures to protect the security, confidentiality and integrity of nonpublic personal information relating to customers of GE Parties and other Customer Information received by Seller from or on behalf of any GE Party. These measures shall be designed to ensure the security and confidentiality of Customer Information, protect against any anticipated threats or hazards to the security or integrity of such information, and protect against unauthorized access to or use of such information that could result in substantial harm or inconvenience to any consumer. Seller s authorized subcontractors to whom Customer Information is provided: Seller will ensure that any third party approved by Purchaser to whom the applicable GE Party authorizes Seller to transfer or provide access to Customer Information signs a written contract in which it agrees (i) to restrict its use of Customer Information to the use specified in the agreement between the Seller and the third party (which use must be in conjunction with Seller performance of its obligations hereunder); (ii) to comply with all applicable laws, rules and regulations; and (iii) to implement and maintain appropriate administrative, technical and physical safeguards to protect the security, confidentiality and integrity of all Customer Information as provided herein. Seller will also be responsible for any unauthorized use or disclosure by any third party to whom it transfers or provides access to Customer Information to the same extent as if Seller had itself used or disclosed such information

INDEMNIFICATION: Seller shall indemnify, release, defend and hold Purchaser its directors, officers, employees, agents, representatives, successors and assigns, whether acting in their course of employment or otherwise, and its Customers harmless from and against any and all losses, claims, damages, liabilities, and expenses of any kind or nature whatsoever, including legal fees, which may arise out of, result from, or be reasonably incurred in connection with Seller's performance of and compliance with the provisions of this Purchase Order (including, without limiting the generality of the foregoing, losses, claims, damages, and liabilities to employees or agents of Seller and of its subcontractors and their employees and agents), joint or several, to which Purchaser or its Customers may become subject, including, without limiting the generality thereof, losses, claims, damages, liabilities, and expenses (and actions in respect thereof) which relate to injury to or death of persons or damage to property that may have been caused, or that may be alleged to have been caused, directly or indirectly, by Seller, its employees, or its subcontractors, their employees or agents. Seller agrees to include this clause in any subcontracts issued hereunder. Seller shall further indemnify, defend and hold Purchaser harmless from the alleged violation of the intellectual property rights of any third party, including without limitation, any claim that any article, apparatus, or business process or method or any part thereof, as well as any device or process necessarily resulting from the use thereof, constitutes an infringement of any patent in any jurisdiction. In case use of said article, apparatus, part or device, process or method is enjoined, Seller shall, at its own expense and at its own option, either procure for Purchaser the right to continue using said article apparatus, part or device, process or method; or replace same with a non-infringing equivalent; or remove the allegedly infringing element and refund the purchase price and the transportation and installation costs thereof. The remedies set forth herein shall be cumulative and in addition to any other remedies provided in law or equity.

INJURIES AND INSURANCE: If Seller's work under this Purchase Order involves operations by Seller on the premises of Purchaser or one of its customers, Seller shall take all necessary precautions to prevent the occurrence of any injury to person or property during the progress of such work. Seller shall maintain Commercial General Liability (including Contractual Liability coverage), Automobile Liability, Employer's Liability and Errors and Omissions insurance with limits as reasonably required by Purchaser, as well as appropriate statutory insurance including but not limited to Employees State Insurance and Workmen's Compensation coverage. Seller shall furnish to Purchaser a certificate of insurance completed by its insurers certifying that the required insurance coverage's are in effect and will not be canceled or materially during the term of this Purchase. If required by Purchaser, Seller shall further name Purchaser as an additional insured on the aforementioned policies, and each insurance policy shall grant waiver of subrogation, except for the Errors and Omissions coverage's, and contain a provision that the insurance provided hereunder shall be primary and non-contributing with any other insurance.

PERSONAL DATA PROTECTION: (a) "Personal Data" includes any information relating to an identified or identifiable natural person that is obtained by Seller from Buyer; "Buyer Personal Data " includes any Personal Data obtained by Seller from Buyer; and "Processing" includes any operation or set of operations performed upon Personal Data, such as collection, recording, organization, storage, adaptation or alteration, retrieval, accessing, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, blocking, erasure or destruction. (b) Seller, including its staff, shall view and Process Buyer Personal Data only on a need-to-know basis and only to the extent necessary to perform this Agreement or Buyer's further written instructions. (c) Seller shall use reasonable technical and organizational measures to ensure the security and confidentiality of Buyer Personal Data in order to prevent, among other things, accidental, unauthorized or unlawful destruction, modification, disclosure, access or loss. Seller shall immediately inform Buyer of any breach of this security and confidentiality undertaking, unless prohibited from doing so by law. (d) Upon termination of this Agreement, for whatever reason, Seller shall stop the Processing of Buyer Personal Data, unless instructed otherwise by Buyer, and these undertakings shall remain in force until such time as Seller no longer possesses Buyer Personal Data. (e) Seller understands and agrees that Buyer may require Seller to provide certain Personal Data ("Seller Personal Data") such as the name, address, telephone number, and e-mail address of Seller's representatives in transactions, and that Buyer and its affiliates and their contractors may store such data in databases located and accessible globally by their personnel and use it for purposes reasonably related to the performance of this Agreement, including but not limited to supplier and payment administration. Seller agrees that it will comply with all legal requirements associated with transferring any Seller Personal Data to Buyer. Buyer will be the "Controller" f this data for legal purposes, and agrees not to share Seller Personal Data beyond Buyer, its affiliates and their contractors, and to use reasonable technical and organizational measures to ensure that Seller Personal Data is processed in conformity with applicable data protection laws. Seller may obtain a copy of the Seller Personal Data and submit updates and corrections to it by sending Buyer a written notice.

LIMITATION OF LIABILITY: PURCHASER'S TOTAL LIABILITY TO SELLER FOR ALL CLAIMS OR SUITS OF ANY KIND, WHETHER BASED UPON CONTRACT, TORT (INCLUDING NEGLIGENCE), WARRANTY, STRICT LIABILITY, OR OTHERWISE, FOR ANY LOSSES, DAMAGES, COSTS OR EXPENSES OF ANY KIND WHATSOEVER ARISING OUT OF, RESULTING FROM, OR RELATED TO THE PERFORMANCE OR BREACH OF THIS PURCHASE ORDER SHALL, UNDER NO CIRCUMSTANCES, EXCEED THE PRICE SET FORTH ON THE FACE OF THIS PURCHASE ORDER. PURCHASER SHALL NOT, UNDER ANY CIRCUMSTANCES, BE LIABLE FOR ANY SPECIAL, INDIRECT, INCIDENTAL, PUNITIVE, OR CONSEQUENTIAL LOSSES, DAMAGES, COSTS, OR EXPENSES WHATSOEVER EVEN IF PURCHASER HAS BEEN ADVISED OF THE POSSIBILITY OF SAME.

DISPUTE RESOLUTION: In the event of any dispute between the Parties hereto arising from or relating to this Purchase Order, then, upon the written request of either party, each of the Parties will appoint a designated representative to endeavor to resolve such dispute. The designated representatives will be executives with sufficient authority to engage in good faith negotiations and bind the party s/he represents. If the designated representatives are unable to resolve the dispute within a reasonable period (but in no event more than thirty (30) days from the date of receipt of written request, then the dispute will be escalated to representatives of each party at least one (1) level higher in their respective organizations than those involved in the previous round of negotiations. Such escalated representatives shall endeavor to resolve the dispute within a reasonable period, (but in no event more than thirty (30) days from the date of receipt of written request).

SEVERABILITY: Any term, condition or provision of this Purchase Order which is, or is deemed to be void, prohibited, or unenforceable is severable here from, and is ineffective to the extent of such avoidance, prohibition or unenforceability without in any way invalidating the remaining terms, conditions and provisions hereof.

NON-ASSIGNMENT; SUB-CONTRACTING, NO DELEGATION OF PERFORMANCE: Any assignment of this Purchase Order or sub-contracting of its performance or any interest therein or any payment due or to become due hereunder, without the written consent of the Purchaser, shall be void. Purchaser shall only be obligated to pay Seller for the or services provided hereunder unless and until Purchaser has agreed, in writing, to any assignment of payment rights by the Seller to another party.

APPLICABLE LAW & JURISDICTION: This Purchase Order shall be construed and enforced in accordance with, and governed by, the laws of India. The competent courts at New Delhi] shall have exclusive jurisdiction in relation to this Purchase Order.

PUBLICATIONS: The Seller agrees that no acknowledgment or other information concerning this Purchase Order and the goods or services provided hereunder will be made public by the Seller without the prior written agreement of the Purchaser. Additionally, Seller agrees that it will not use Purchaser's name, logo, trademarks, photographs or other identifying characteristics or those of any of its parent, subsidiaries or affiliates without Purchaser's prior written approval.

WAIVER: No claim or right arising out of a breach of this Purchase Order can be discharged in whole or in part by a waiver or renunciation of the claim or right unless the waiver or renunciation is supported by consideration and is in writing signed by the aggrieved party. The failure of Purchaser to enforce at any time or for any period of time any of the provisions thereof shall not be construed to be a waiver of such provision nor the right of Purchaser thereafter to enforce each and every such provision.

DELAY AND DEFAULT: Time is of the essence of this Purchase Order. Except in instances of delay which are due to causes beyond the reasonable control and without the fault or negligence of Seller, and all of its suppliers, Purchaser may by written notice of default to Seller terminate the whole or any part of this Purchase Order if Seller fails to supply the goods or perform in part or in whole the services within the time specified herein or any extension thereof. Seller shall continue performance of this Purchase Order to the extent not terminated and shall be liable to Purchaser for any excess costs for such similar services. As an alternate remedy, and in lieu of termination for default, Purchaser, at its sole discretion, may elect to extend the delivery schedule and/or to waive other deficiencies in Seller's performance, in which case an equitable reduction in the Purchase Order price shall be negotiated. Such extension or waiver must be evidenced in writing signed by an authorized representative of Purchaser. In the event Seller for any reason anticipates difficulty in compliance with the required completion date, or in meeting any of the other requirements of this Purchase Order, Seller shall promptly notify Purchaser in writing.

PURCHASER'S PROPERTY: Unless otherwise agreed in writing, all materials of every description furnished to Seller by Purchaser or specifically paid for by the Purchaser, and any replacement thereof, or any materials affixed or attached thereto, shall be and remains the property of Purchaser. Such property, and whenever practical each individual item thereof, shall be plainly marked or otherwise adequately identified by Seller as "Property of GE" and shall be safely stored separate and apart from Seller's property. Such property while in Seller's custody or control shall
be held at Seller's risk, and if required by Purchaser, shall be kept insured by Seller at Seller's expense in an amount equal to the replacement cost with loss payable to Purchaser and shall be subject to removal at Purchaser's written request, in which event Seller shall prepare such property for shipment and shall redeliver to Purchaser in the same condition as originally received by Seller, reasonable wear and tear excepted, all at Seller's expense.

INSOLVENCY & BUSINESS CONTNUITY: If Seller ceases to conduct its operations in the normal course of business, including inability to meet is financial or performance obligations as they mature, or if any proceeding under the bankruptcy or insolvency laws is brought by or against Seller, or a receiver for Seller is appointed or applied for, or an assignment for the benefit of creditors is made by the Seller, Purchaser may terminate this order without liability, except for deliveries previously made or for goods or services covered by this Purchase Order then completed and subsequently delivered in accordance with the terms of the order.

ENTIRE AGREEMENT: This Purchase Order, with such documents as are expressly incorporated herein by reference on the face of the initial page of the Purchase Order, is intended by the parties as a final expression of their agreement, and is intended as a complete and exclusive statement of the terms of their agreement. No course of prior dealings between the parties and no usage of the trade shall be relevant to determine the meaning of this Purchase Order even though the accepting or acquiescing party has knowledge of the nature of the performance and opportunity for objection. Any modification to these terms and conditions must be made in writing, signed by both parties.